

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 967

Introduced by Jacobson, 42.

Read first time January 12, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Mutual Insurance Holding Company Act;
- 2 to amend section 44-6122, Reissue Revised Statutes of Nebraska; to
- 3 provide requirements for electronic notice of annual meetings as
- 4 prescribed; and to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 44-6122, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 44-6122 Sections 44-6122 to 44-6143 and section 2 of this act shall
4 be known and may be cited as the Mutual Insurance Holding Company Act.

5 **Sec. 2.** (1) A mutual insurance holding company shall provide notice
6 of its annual meeting to its members as provided by the company's bylaws
7 or, if the bylaws are silent, in a manner that is reasonable. Electronic
8 notice, either by direct electronic transmission, publication on a
9 designated website, or comparable technology is reasonable if:

10 (a) For notice by direct electronic transmission, the notice is sent
11 to an electronic address or account that the member has designated for
12 receipt of notices or to an electronic address the company reasonably
13 believes will reach the recipient; or

14 (b) For notice published on a designated website, the company has
15 previously informed its members of the time, location, and procedure for
16 accessing notices published on a designated website.

17 (2) The notice described in subsection (1) of this section shall
18 include all information otherwise required by law, including instructions
19 for accessing meeting materials and for voting or participating in the
20 meeting if electronic participation or voting is permitted.

21 (3) Notice shall be effective on the date that such notice is sent,
22 or if published on a designated website, on the date the notice is
23 published. The company shall demonstrate delivery to the electronic
24 address or account or publication on a designated website, by
25 contemporaneous logs, delivery receipts, or portal access records.

26 (4) Nothing in this section precludes a company from using
27 electronic means or publication on its website to provide meeting
28 materials, proxies, ballots, or other member communications if the
29 company complies with the requirements of this section.

30 (5) After receipt of notice, a member may contact the company to
31 request that printed meeting materials be sent via United States mail at

1 no cost to the member.

2 (6) A mutual insurance holding company may also provide notice of an
3 annual meeting to members as part of policy language, a policy
4 endorsement, a rider, or an amendment.

5 **Sec. 3.** Original section 44-6122, Reissue Revised Statutes of
6 Nebraska, is repealed.